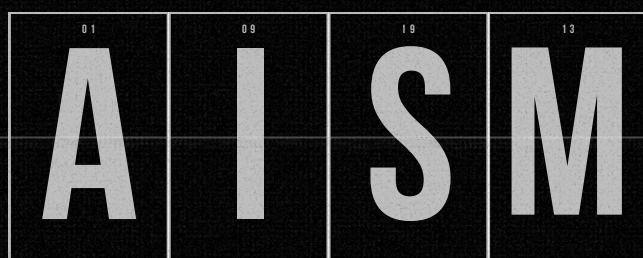


BACKGROUND GUIDE



ALL INDIA STAKEHOLDER'S MEET

ALL INDIA STAKEHOLDER'S MEET

Agenda: Regulating misinformation, hate speech and content moderation while preserving freedom of expression.

A NOTE FROM THE EXECUTIVE BOARD

Dear Stakeholders,

At the very beginning, on behalf of the Executive Board, I would like to warmly welcome you to the AISM (All India Stakeholders' Meet) at AAWAAZ 2.0 to be held on 8 th and 9 th August, 2026.

AISM is an unusual committee in that everyone is likely to be both right and wrong in equal measure – and it turns out that deciding which is which is not always easy.

We are not looking for delegates who can memorize, research and present exactly what their portfolio says, regurgitating it with greater volume and passion at the hustings. A search engine can do the first task and a megaphone the second. What we want to see is understanding of why your stakeholder believes what it believes – what interests underpin its positions, its capabilities and constraints, and what dangers arise when its principles are taken to their logical – if unpalatable – conclusion

Your portfolio is your brief, not your script. Know its politics, its prejudices, its power and its weaknesses. Know when to stand your ground and when to compromise, for flexibility is not a virtue, nor is dogmatism.

This guide is deliberately brief. It is intended as a beginning, not an end. The biggest threat to a delegate's preparation is the illusion that the research is finished once the background guide has been read. Get digging. Ask questions. Follow up. Follow the issues through their implications, institutions, technologies, laws and interests.

The Executive Board will be looking for presence of mind, analytical rigour, political awareness and strategic nous. We want you to interrogate the obvious, to question the conventional wisdom, to ask the awkward questions. Public policy has a disturbing tendency to become more complicated the less one knows about it.

Let one see great things from the valley small things from the peak.

Welcome to AISM,

Vishwajeet Kachawah
Moderator

Daksh Wadekar
Deputy Moderator

SECTION 1: OVERVIEW OF THE COMMITTEE

ALL INDIA STAKEHOLDER'S MEET

The All India Stakeholders Meet (AISM) is a simulation of a multi-stakeholder deliberative forum in which delegates from governmental, political, media, digital, civil society and other agencies deliberate on matters of national significance. Unlike traditional MUN committees, delegates do not represent countries but a spectrum of stakeholders. Delegates are expected to research their stakeholder's portfolio, interests, obligations and resolutions passed previously by them.

At AAWAAZ 2.0, AISM will operate under Unconventional Rules of Procedure, as determined by the Executive Board, to promote robust debate and discussion, including negotiations between stakeholders.

Delegates should keep in mind their stakeholder's interests and work towards evolving pragmatic and balanced solutions.

The agenda for this session – “Regulating Misinformation, Hate Speech and Content Moderation while Preserving Freedom of Expression” seeks to address one of the most pertinent issues of our times: The regulation and moderation of digital space. Delegates will deliberate on issues concerning misinformation, online hate speech, censorship, regulation, moderation, and related issues while grappling with the challenge of preserving freedom of speech and expression, and by extension individual freedoms and democratic society itself.

SECTION 2: INTRODUCTION TO THE AGENDA

The digital regulatory environment in the Republic of India underwent a significant transformation between 2021 and August 2026. India is today the world's largest connected democracy, with almost a billion Internet users. As a result, the digital space has become the new arena for political, economic, and social contestation.

Moreover, the scale has produced deluge effects as disinformation and abuse have taken on new levels and forms. "Synthetic information" presents a serious set of challenges for electoral integrity and public discourse. The manipulation of the social media space by both state and non-state actors has led to artificial financial market fluctuations. The core of this committee's agenda revolves around three intersecting pillars:

1. Misinformation and Synthetic Media: How does a democratic state control extremely realistic computer generated "fake news" and "deepfakes" without the creation of a "Ministry of Truth" that dictates what is and is not real?
2. Hate Speech and Algorithmic Amplification: Colonial-era penal codes were written for physical mobs. How do we update these laws to regulate algorithmic amplification of hate speech, dog-whistling, and bots that circumvent definitions of incitement to violence?
3. Content Moderation and Intermediary Liability: Shouldn't massive digital platforms be treated as passive "post offices" that are entirely immune from liability (safe harbor), or do they act as publishers that should be held criminally responsible for any unlawful content that appears on their platforms during an extremely compressed time window?

SECTION 3: CONSTITUTIONAL LAW

Before you can discuss even one IT Rule or penal code, you have to know the Constitution of India. Whatever resolution or directions you propose before this committee must stand the test of constitutionality because if not, the Supreme Court will declare it void.

Article 19(1)(a)

Article 19(1)(a) of the Constitution guarantees all citizens the right to freedom of speech and expression, which is the cornerstone of Indian democracy. However, it is a qualified right, which means that the right is available to every citizen subject to reasonable restrictions. The Constitution allows the state to impose reasonable restrictions on the exercise of this right under certain specific grounds mentioned in Article 19(2). These restrictions can be imposed only if they fall under the specific grounds mentioned in this article. The following are the grounds on which the right of citizens to freedom of speech and expression can be reasonably restricted:

- Sovereignty and integrity of India
- Security of the State
- Friendly relations with foreign States
- Public order
- Decency or morality
- Contempt of court
- Defamation
- Incitement to an offense

The Public Order Threshold : Courts have consistently held that 'public order' is not a synonym for 'law and order'. A ban on communication for reasons of public order can only be imposed if a direct link (proximate causation) between the communication and an imminent domestic disturbance is established.

The Misinformation Trap: this committee faces one persistent and especially serious friction point: “fake news”/”falsity” is not explicitly mentioned in Article 19(2).

SECTION 3: CONSTITUTIONAL LAW

Therefore, state actions to censor misinformation on the grounds of it being objectively false suffer significantly diminished legitimacy under the present wording. Objective falsehoods, such as those found in satire or entirely benign rumors, do not logically have a “chilling effect” on the right to free speech or the rights of “the people so to speak of the public order and of the security of the state”. Therefore, delegates arguing that the state has a right to fact-check sources of speech must provide sufficient evidentiary basis for why a particular instance of false speech falls under 19(2)

SECTION 4: COURT CASES & CASE STUDIES

To win a debate in this committee, you must cite case law. The Supreme Court is the ultimate referee, and understanding their historical rulings allows you to predict how they will rule on your committee's proposals. Here are the mandatory precedents you must know in deep detail:

Shreya Singhal v. Union of India (2015)

This is the most famous digital rights case in Indian history. The Court evaluated the Information Technology Act, 2000, specifically examining state censorship powers versus free speech.

1. **Striking Down Section 66A:** The court was against the Section 66A as it was unconstitutionally vague. They held that the term offensive is very wide and that the drafters cannot possibly define it. The court said that the very nature of such a law makes people refrain from their legitimate rights under the Constitution and that it creates a chilling effect on freedom of speech and expression.
2. **Upholding Section 69A:** On the other hand, the Court did not strike down the government's power to block a site altogether (Section 69A). It upheld the order because it is reasonable with an appropriate process: the request for blocking must be approved by a high-level committee, include written findings, and include a hearing of the content creator, if possible.

SECTION 4: COURT CASES & CASE STUDIES

The Crux for Delegates (Section 79): The Court laid down “Safe Harbor.” Specifically, the Court read down Section 79(3)(b) and said that an intermediary (social media) could lose the exemption as provided under Section 79 only if it failed “to remove or disable access to the content upon receipt of a court order or upon receipt of a notification from a specified government agency.” This implies that the social media platform cannot act unilaterally to decide whether a particular communication is illegal based merely on a report by a random user.

Pravasi Bhalai Sangathan v. Union of India (2014)

The issue of political hate speech was taken up by a Public Interest Litigation that sought to have guidelines framed by the Court to counter such speeches. The Supreme Court declined to legislate, however, citing the separation of powers, but provided a foundational passage for current jurisprudence on the subject. According to the Court, hate speech harms the dignity of the targeted group(s) and makes way for a climate in which discrimination and violence can occur. The Court directed the Law Commission to draft a report on the subject that led to Report 267 (2017).

Amish Devgan v. Union of India (2021)

TV anchor Amish Devgan made derogatory comments about revered Sufi saint Khwaja Moinuddin Chishti on live TV which led to multiple FIRs being filed in various states. The court denied his request to cancel the FIRs.

1. “Who” is speaking (a “person of influence” such as a TV commentator or elected representative has more legal weight and responsibility than an ordinary citizen),
2. “What” is being said (the content and its historical context),
3. The “Audience” (who is listening). Moreover, the speech of the historically oppressed saying what they want is more constitutionally protected than the speeches of the oppressors.

SECTION 4: COURT CASES & CASE STUDIES

Patricia Mukhim v. State of Meghalaya (2021)

Journalist Patricia Mukhim criticed Meghalaya Chief Minister and police for not taking action against non-tribal youths who were beaten up by tribals and was booked for promoting enmity and giving false information to the police. The Supreme Court dismissed the FIR completely. The Apex Court held that "..The fervent plea made by the Appellant for protection of non-tribals as also his criticism of the attitude of the concerned authorities cannot, by any stretch of imagination, be viewed as containing any hate speech..". The Court ruling shows that asking authorities to take cognizance of the problem cannot be termed as hate speech just because it makes authorities uncomfortable.

Ashwini Kumar Upadhyay v. State of NCT of Delhi (April 2026)

During 2022-24, the Supreme Court was very active in directing police to file suo-moto FIRs against hate speech and in directing the monitoring of rallies. Activists filed thirteen clubbed writ petitions to get a continuing mandamus to the police to act proactively. One of the petitions, by Brinda Karat, sought prosecution of BJP leaders Anurag Thakur and Parvesh Verma for some of their speeches in 2020 before the Delhi riots about "traitors" that could have instigated the riots.

Justices Vikram Nath and Sandeep Mehta gave a very important doctrinal shift by taking on the position that the law was not silent in this area, that the IPC/BNS provisions such as 153A and 295A were not insufficient and that the Court should not be in the business of creating new guidelines and/or directions, and hence was not required to act upon such matters.

SECTION 4: COURT CASES & CASE STUDIES

The Court said it would not entertain contempt proceedings against the police for not registering FIRs suo-moto, observing that for "hesitation", it must be proved that police had knowledge of the matter and wilfully refrained from taking action and held that citizens must first approach the police, and that the order was upholding the acquittal of Anurag Thakur and Parvesh Verma as no cognizable offence was made out.

The Government and Bureaucrat blocs can use this to kill any future attempts to create new broad law speech laws. They simply say that the Supreme Court is satisfied with the current laws and it's an issue of enforcement, not of laws.

Kaushal Kishor v. State of U.P. (2023)

Decided in January 2023, this is a landmark judgment, which significantly amends the very foundation of the Constitution. For decades, it was held that only the Government (State) could be sued for violating fundamental rights enshrined in Part III of the Constitution. This ruling by the Constitution Bench of Supreme Court (4:1), however, provides that Fundamental Rights (Articles 19 and 21) can be enforced against private and non-state bodies – horizontally – as well. Therefore, in cases concerning violation of free speech, the delegated authority will have a chance to invoke that a major Tech Corporation could be directly (not vicariously) accountable for free speech violation of an Indian citizen. (It also clarifies that the free speech of a Minister cannot be attributed to the Government, thus answering the opposite side of the question.)

Ranveer Allahbadia v. Union of India (2025)

In the month of February 2025, videos of comedian Samay Raina's YouTube show India's Got Latent went viral for featuring Ranveer Allahbadia (also known as BeerBiceps) making sexually suggestive remarks about parents. FIRs were filed in Guwahati and Mumbai citing BNS obscenity provisions, the Cinematograph Act and the Indecent Representation of Women Act (IRWA).

SECTION 4: COURT CASES & CASE STUDIES

On 18 February 2025, the Supreme Court ordered interim protection for Allahbadia against arrest, but imposed a strange "prior restraint": Allahbadia and the accused could not post new content until the court decides on their future, which it called a sign of a "perverted mind."

The ban was relaxed in March 2025, allowing him to continue his podcast on 'livelihood' grounds (he provides for 280 employees), but with a reminder that he should adhere to the 'morality and decency' guidelines.

The court itself expressed that there was a "vacuum in law" related to digital content. Two days later, it seems that the MIB issued a very aggressive advisory to the OTT platforms which led to the introduction of CECs as mentioned earlier. (The case again went back to the court in mid-2026 when the court directed Samay Raina to pay a sum of ₹3 lakh as compensation for not withdrawing remarks directed at a person living with Spinal Muscular Atrophy.)

The Government bloc can argue that since creators clearly fail to self-regulate decency, and since the Courts are forced to impose draconian bail conditions, the state must pass statutory laws to civilize the influencer-space.

X Corp v. Union of India (September 2025, Karnataka HC)

The Government has created a centralized "Sahyog Portal" to allow faster takedown notices from courts to platforms directly from the government, which circumvents the Section 69A blocking orders due process and secrecy protections.

X Corp (Twitter) filed a suit against the portal challenging its legality after Twitter received a number of takedown requests from the Railway Ministry, which was investigating a stampede that resulted in the death of a crowd in a New Delhi railway station.

SECTION 4: COURT CASES & CASE STUDIES

On September 24, 2025, Justice M. Nagaprasanna ruled in favor of the Sahyog Portal. The Judge concluded that Section 69 a and 79(3)(b) are both completely different. Disappointingly for Silicon Valley, the Judge held that foreign multinational corporations are “artificial juristic entities” which do not possess the Article 19 rights in India which is a “charter of rights conferred upon citizens only” and that social media “cannot be left in a state of anarchic freedom.”

X Corp filed a writ appeal on 14th November 2025, which is pending before a Division Bench. But as of now, foreign tech giants face an insurmountable litigation hurdle in Indian courts.

SECTION 4.1: HOW TO USE THESE CASES

Reading a case is not the same as being able to argue against it. For each case, a list of takeaways to argue against it has been provided, as well as a set of questions that can be asked to structure a arguments.

Shreya Singhal / Section 79 Safe Harbor Principle

Takeaways:

1. Platforms only lose safe harbor if they ignore a court order or government notification, not in response to a user complaint.
2. This was specifically designed to prevent platforms from becoming private censors.
3. This places the responsibility to decide what is illegal on the court system and not on the companies' trust and safety teams.
4. It is the basis for all other safe-harbor arguments in this committee, and a point of contention for all others.

Questions to raise:

1. If your platform is removing content in response to user complaints, are you not already going beyond what the law requires and becoming a private censor?

SECTION 4.1: HOW TO USE THESE CASES

2. Does the risk of being held liable for user content outweigh the protection of Section 79?
3. Should intermediaries be required to make public how many takedowns were in response to court orders or government notification versus private complaints (e.g. Sahyog)?
4. If platforms are already "over-complying" with the law to avoid liability, is Section 79 not already failing its purpose?

Pravasi Bhalai Sangathan v. Union of India (2014)

Takeaways:

1. This is the Court's working definition of hate speech: speech that causes discrimination or violence towards a group based on identity.
2. The Court declined to act on the issue, arguing it fell outside its jurisdiction, and tasked the Law Commission with drafting legislation.
3. The 267th Law Commission Report (2017) is currently the closest thing India has to hate speech legislation, but has not been passed by Parliament.
4. The Court views hate speech as a societal ill, not just an offence against individuals.

Questions to raise:

1. If the Court's working definition of hate speech is based on discrimination and violence, why are FIRs not being filed in cases of individual discrimination or violence?
2. The recommendations of the 267th Law Commission Report have been pending for nearly a decade – whose fault is this?
3. Is it not the responsibility of this committee to draft legislation, as the Court has asked, or is it outside our jurisdiction?

SECTION 4.1: HOW TO USE THESE CASES

4. Does the Court's definition of hate speech as a societal ill rather than an offence against individuals not render it unenforceable?

Amish Devgan v. Union of India (2021)

Takeaways:

1. Context is key – the same words directed at different audiences, by different people, with different intent, may have different meanings and consequences.

2. A person of "prestige" (politician, celebrity, media personality) has greater responsibility than an ordinary citizen.

3. Marginalized communities have more leeway to speak about their lived experience, and the Court will side with them.

4. The Court refused to quash the FIR despite agreeing with the context defense, arguing context could aggravate an offence rather than mitigate it.

Questions to raise:

1. Should not a comedian with 10 million YouTube subscribers be held to a higher standard than an anonymous Twitter account with 50 followers?

2. If marginalized communities have greater leeway to discuss their lived experience, how can platforms apply this standard consistently?

3. Is not the "who is speaking" test inherently discriminatory, as it can be used to justify disproportionate punishment of critics of the government?

4. Who decides who belongs to a "prestigious" profession, and who decides which communities are "marginalized"? Could this not be used to suppress dissent?

SECTION 4.1: HOW TO USE THESE CASES

Patricia Mukhim v. State of Meghalaya (2021)

Takeaways:

1. Criticism of the government's inaction does not constitute hate speech, even if it indirectly criticizes a group.
2. The Court ruled in favor of a "call for justice," not an "attack on a community."
3. This is one of the few cases in this list where the Court ruled in favor of free speech and against a state FIR.
4. The Court acknowledged that FIRs are often used to suppress legitimate criticism of the government.

Questions to raise:

1. If criticism of the government's inaction does not constitute hate speech, why are journalists and creators still being booked for FIRs?
2. Is there not a difference between "calling out" a community's inaction and "attacking" a community?
3. Should this not set a higher standard for police FIRs, since they are often used to suppress criticism of the government?
4. Does not this ruling contradict Amish Devgan? Does not the "call for justice" fall under the same context test?

Ashwini Kumar Upadhyay v. Union of India (April 2026)

Takeaways:

1. The Supreme Court ruled that there is no legislative vacuum — existing laws are sufficient to deal with hate speech. (153A, 295A, BNS)
2. The Court ruled against police inaction by refusing to hold them in contempt of court.

SECTION 4.1: HOW TO USE THESE CASES

3. This brings to an end the era of proactive judiciary intervention (2022-2024).

4. Politicians Anurag Thakur and Parvesh Verma were able to evade action for their role in the 2020 riots due to the Court's acceptance of the lower judiciary's "no cognizable offence" ruling.

5. This ruling is the most relevant for this committee, as it was made just months ago.

Questions to raise:

1. If the Supreme Court ruled that there is no legislative vacuum, on what grounds can any member of this committee argue otherwise?

2. Does not the Court's acceptance of the "approach police first" policy ignore the fact that police inaction is the problem?

3. Does not the Court's reversal of the High Court's legal opinion on sanction, while accepting its "no cognizable offence" ruling, show doublethink?

4. Does not this ruling effectively bury the issue of hate speech for the next decade?

Kaushal Kishor v. State of U.P. (2023)

Takeaways:

1. Enforcement of fundamental rights (Articles 19 and 21) now extends to private bodies and individuals – not just the State.

2. This could have massive implications for regulating Big Tech.

3. A Minister's personal speech cannot be attributed to the government.

4. The ruling was made by a 4:1 majority – it is not universally accepted.

SECTION 4.1: HOW TO USE THESE CASES

Questions to raise:

1. If citizens can now enforce fundamental rights against private companies and individuals, should not Big Tech be held to account for their actions?

2. Could this not lead to weaponization – could not ordinary citizens use this to sue platforms for every moderation decision?

3. If a Minister's personal speech cannot be attributed to the government, does not the government evade responsibility for its officials' actions?

4. Could this ruling lead to more litigation against Big Tech? Could this ruling lead to more litigation against the government?

Ranveer Allahbadia v. Union of India (2025)

Takeaways:

1. The Court used a bail condition to effectively regulate content – banning all future content by Allahbadia.

2. The Court acknowledged a "vacuum in law" for regulating digital content – this is what led to MIB's OTT advisory two days later.

3. The restriction was later modified on grounds of livelihood (280 employees depend on his show).

4. The case was cited again in 2026, when Samay Raina was fined for not following the Court's orders.

Questions to raise:

1. Is regulation by way of a bail condition not an unpredictable and subjective standard?

2. If the Court acknowledges a "vacuum in law," should not Parliament act to fill it?

SECTION 4.1: HOW TO USE THESE CASES

3. Does not the modification on grounds of livelihood set a dangerous precedent?

4. Does not the 2026 contempt ruling show that the Court can enforce its own orders?

X Corp v. Union of India (Sept 2025, Karnataka HC)

Takeaways:

1. A foreign entity cannot claim the protection of Article 19 in India.
2. The Sahyog Portal, which routes takedown requests through Section 79(3)(b) rather than Section 69A, was ruled to be legal.
3. The Court ruled that social media cannot be "left to the anarchic freedom of the marketplace of ideas."
4. X Corp's appeal is currently pending before a Division Bench – this is not the final ruling.

Questions to raise:

1. If foreign entities cannot claim the protection of Article 19, can they be ordered to remove content without following due process?
2. Does not the use of Sahyog Portal to route takedown requests through Section 79(3)(b) bypass the protections of Section 69a?
3. Should not citizens' rights to free speech be protected even if the entity hosting their content cannot claim those rights?
4. Is not the entire basis of Section 79(3)(b) – and therefore of the Sahyog Portal – the "anarchic freedom" of the marketplace of ideas?

SECTION 5: STATUTORY BODIES

This is the hard law of your committee, so you better know it, it tells us exactly what is allowed and what isn't and when it happens or the penalties.

The IT Amendment Rules, 2026

Notified on 10th Feb, 2026 (with effect from 20th Feb), these new rules transition India from a “due diligence” based approach to an “active moderation” approach.

Defining SGI: The government has come out with a very detailed legal definition of SGI (Synthetically Generated Information) in rule 2(wa). Audio-visual or audio/or video media, which is synthetically or algorithmically generated or manipulated so as to appear as audio-visual or audio or video media, is considered SGI. Note that text-only content (including ChatGPT content) is explicitly excluded.

Mandatory metadata labeling: Hosts are required by law to embed cryptographically secured, permanent metadata provenance trackers (proof of synthesis) within the work itself. Significant Social Media Intermediaries (SSMIs) also must obtain user consent for hosting such content and technically verify such consent.

Biggest change: The new rules massively reduce the time for action by the platforms, removing any “technical impossibility” defense.

General Unlawful Content: 72hrs → 36 hours.

Court/Government Order for Unlawful Content: 36hrs → 3 hours.

Non-Consensual Intimate Imagery / Deepfake Nudity: 24hrs → 2 hours.

Grievance Officer Complaint Resolution: 15 days → 7 days.

Penalty for non-compliance: The host becomes immediately liable on its own for any content that is unlawfully hosted. To provide them with a way out, the rules explicitly allow for automated algorithmic removal tools to be used without loss of safe harbor protection.

SECTION 5: STATUTORY BODIES

The Bharatiya Nyaya Sanhita (BNS), 2023

India's modernised Criminal Code.

Section 196 (Promoting Enmity): The primary charge for Hate Speech crimes. It criminalises statements—explicitly including those made through electronic communication—that promote disharmony, enmity, hatred, or ill-will between different groups on grounds of religion, race, place of birth, residence, language, caste, or community. Punishment: Up to 3 years in prison with a fine, which extends up to 5 years if the offence is committed in a place of worship or during a religious assembly.

Section 353 (Public Mischief): The anti-misinformation statute that replaces IPC 505. It criminalises making, publishing, or circulating false information, rumours, or reports—explicitly including distribution through electronic means—intended to cause public panic, alarm, or communal incitement. Note: The statute does not contain a specific subsection or safe-harbor clause exempting influencers who retweet deepfakes in good faith. Punishment: Up to 3 years in prison, a fine, or both.

Section 356 (Defamation): Modernised the crime of defamation by merging the old IPC definitions (IPC 499) and punishments (IPC 500) into a single clause, which explicitly encompasses digital and online defamation. It introduces community service as a new statutory alternative or addition to the traditional punishments. Punishment: Simple imprisonment for up to 2 years, a fine, community service, or a combination of these.

SECTION 5: STATUTORY BODIES

The Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023

Section 105 mandates upon police officers to apply continuous video and audio recording of the search of any data repository (server, laptop, or phone) to preclude evidence tampering during tech-sector raids

SECTION 6: CURRENT REGULATORY CASES

The Fact-Check Unit (FCU)

In 2023, under the proposed amendment to the IT Rules, the government sought to establish a centralized Fact-Check Unit (FCU) which would have the authority to identify any claim relating to "the business of the Central Government" as 'fake', 'false' or 'misleading', forcing platforms to take it down or suffer consequences

As it stands now (as of August 2026), the Centre has appealed to the Supreme Court after the order from the Bombay High Court in September 2024 that the FCU was unconstitutional. After condonation of delay, the appeal was restored in February 2026, and on March 10, 2026, Justice Surya Kant, in a Supreme Court bench hearing the plea, stated that it would refer the constitutional issues raised to a larger three-judge bench, to determine whether "the government has the power to take action on any speech, which it feels to be misleading or not". The FCU controversy is a veritable constitutional crisis at the moment.

The Creator Economy & The Broadcasting Bill

As early as 2024, the MIB has drafted the Broadcasting Services (Regulation) Bill which would seek to classify independent digital creators as broadcasters, requiring them to constitute internal "Content Evaluation Committees" to certify their content beforehand.

In the face of an immense digital outcry, the government retreated. Consultations were officially closed in December 2025, and new draft regulations were released in June 2026, which make no mention of either OTT platforms or digital creators.

SECTION 7: STAKEHOLDERS IN THE COMMITTEE

Delegate Bloc	Core Objectives	Strategic Vulnerabilities	Legislative Strategy & Tactics (Examples Only)
Senior Government Officials (PM, Home Ministry)	Preservation of national security. Stopping highly coordinated deepfake campaigns. Forcing foreign tech giants to respect domestic sovereignty.	The highly public judicial defeat of the Fact-Check Unit (FCU); global accusations of "democratic backsliding."	Push for adoption of the 3 hour takedown rules. Leverage national security to justify breaking E2EE encryption for traceability as per Rule 4(2).
Ministry Bureaucrats (MeitY, MIB, I4C)	Ensuring flawless procedural compliance. Defending the state's operational infrastructure (Sahyog Portal).	The massive administrative backlog inside Grievance Appellate Committees (GACs).	Aim for a blanket compliance with the permanent metadata labeling of SGI. Cite the X Corp (2025) ruling to assert that platforms do not have the fundamental rights to freedom of expression as per Article 19.
Social Media Influencers, Independent Creators	Uncompromising protection of Article 19(1) (a) free speech. Total opposition to Content Evaluation Committees (CECs).	Financial dependence on opaque Big Tech algorithms. Extreme susceptibility to cancel culture.	Cite Kunal Kamra (FCU) to the effect that censorship is anti-constitutional and push for the setting up of an independent self-regulatory organization by the creators of digital content.
Entrepreneurs, Sharks, and Big Tech	Preservation of Section 79 Safe Harbor. Achieving regulatory certainty to keep venture capital flowing into India.	Public backlash over algorithmic bias and failing to stop deepfake scams. Crippled by the Karnataka HC ruling denying them Article 19 rights.	Use the privacy provisions of the DPDPA 2023 to resist decrypting private messages. Push for an EU style risk based approach as per the Data Integrity Act.
Bollywood Celebrities, Directors, Producers	Stopping digital piracy, destroying algorithmic online boycotts (cancel culture), and preventing deepfake defamation.	High susceptibility to automated bot mobs. Historical fear of state censorship boards (CBFC).	Stand by the government on strict enforcement of the 2 hour takedown rules for deepfakes. Argue for a more vigorous use of BNS Section 356 to penalize online mobs.

SECTION 8: RESEARCH METHODOLOGY

1. SCC Online / Manupatra / Indian Kanoon: Use them to read the exact text and judicial reasoning of Supreme Court and High Court judgments. Read the judge's actual words.
2. LiveLaw & Bar and Bench: Essential legal journalism portals for tracking active courtroom exchanges (like the ongoing FCU hearings).
3. The Gazette of India (egazette.nic.in): Go here to read the exact, original wording of the IT Amendment Rules, 2026, and the BNS, 2023.
4. Ministry Websites (MeitY, MIB, MHA): Check for consultation papers on the upcoming Digital India Act.
5. PRS Legislative Research: Highly reliable think-tank producing plain-language summaries of complex bills.
6. Reuters India: Neutral wire-service coverage of Indian political and policy developments. Use it for recent events that postdate your background guide and for international perspectives on domestic issues.
7. The Hindu: National newspaper editorials are accepted as contextual sources in Indian committee debate. Search the agenda topic to find well-argued perspectives from across the political spectrum.

SECTION 9: ESSENTIAL ARTICLES

Article 14 (Right to Equality): “The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India.” (often used to invalidate discriminatory laws, as in the case of Bombay HC striking down the Fact-Check Unit)

Article 19(1)(a) (Freedom of Speech and Expression): Freedom of speech and expression for all citizens. This is the bedrock of this committee's very existence.

SECTION 9: ESSENTIAL ARTICLES

Article 19(1)(g) (Right to Practice any Profession): Guarantees citizens the right to practice any profession, or to carry on any occupation, trade or business. (Highly relevant for the Influencer and Creator Economy blocs arguing that sweeping censorship laws destroy their digital livelihood).

Article 19(2) (Reasonable Restrictions): The exclusive, exhaustive list of grounds on which the state can restrict free speech (Sovereignty and integrity of India, security of the State, friendly relations with foreign States, public order, decency or morality, contempt of court, defamation, or incitement to an offence).

Article 21 (Protection of Life and Personal Liberty): "No person shall be deprived of his life or personal liberty except according to procedure established by law." (In the digital age, the Supreme Court has interpreted this to include the fundamental Right to Privacy).

Article 32 & 226 (Writ Jurisdiction): Allows citizens to directly approach the Supreme Court (Art. 32) or High Courts (Art. 226) for the enforcement of their fundamental rights.

SECTION 10: GLOSSARY

Algorithmic Amplification: The automated process by which a platform's algorithm promotes certain content, in order to maximize the amount of time a user spends engaging with it. This can lead to an increase in polarizing content, or content that spreads hate

BNS: Bharatiya Nyaya Sanhita, which is the new criminal code that replaces the Indian Penal Code (IPC).

BNSS: Bharatiya Nagarik Suraksha Sanhita, which is the new criminal procedure code that replaces the CrPC.

SECTION 10: GLOSSARY

Content Evaluation Committee (CEC): One of the proposed censorship mechanisms in the defunct 2024 Broadcasting Bill, which was vociferously opposed by independent content creators

Coordinated Inauthentic Behavior (CIB): The practice of using multiple bots or fake accounts to push a coordinated narrative around trending topics, and to deceive users about who is behind particular digital campaigns.

Digital India Act (DIA): The proposed digital governance law that would replace the IT Act, 2000, and introduce new ‘systemic risk’ categories akin to the EU’s Digital Governance Act.

DPDPA (Digital Personal Data Protection Act, 2023): India’s new personal data protection law, which lays great emphasis on the principle of purpose limitation.

End-to-End Encryption (E2EE): A type of encryption where only the communication parties see the content of a message, and the service provider (WhatsApp, in the case of WhatsApp) cannot.

Grievance Appellate Committee (GAC): An appellate authority that hears appeals from users against the decisions of an intermediary. The GACs will be set up by the Government for adjudicating complaints against digital platforms.

Horizontal Application of Rights: The principle – upheld in the landmark 2023 case of Kaushal Kishor v. State of U.P. – that rights guaranteed by the Constitution can be enforced against both the state and private entities.

Intermediary: A term that refers to entities such as social media platforms that host or relay information on behalf of third parties.

SECTION 10: GLOSSARY

Over-The-Top (OTT) Platforms: Online streaming services that are distributed over the Internet, rather than through traditional television broadcasting. Examples include Netflix.

Safe Harbor (Section 79): The legal shield provided to digital intermediaries, that protects them against being sued for copyright infringement, defamation, or other violations of law that are committed using their platforms. In exchange for this immunity, intermediaries are obligated to take down user generated content as and when required by law.

Sahyog Portal: The portal set up by I4C where law enforcement agencies can submit takedown requests to intermediaries directly, effectively by-passing the judicial process.

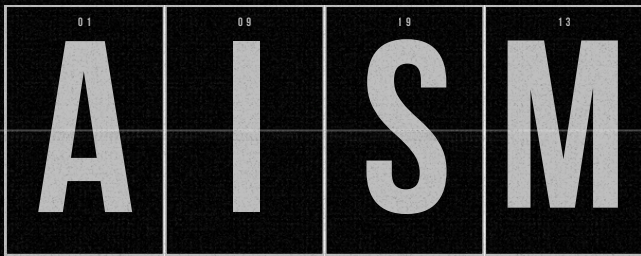
Significant Social Media Intermediary (SSMI): One of the new classifications of social media platforms under the IT (Amendment) Act, 2021, that requires them to comply with a special set of norms.

Synthetically Generated Information (SGI): According to Rule 2(wa) of the IT Rules 2026, any audio, video or audio-visual content that is created using an algorithm and has the appearance of being created by a human is considered synthetically generated information, with limited exceptions for text. It must be noted that SGI does not explicitly refer to text generated by algorithms.

Traceability (Rule 4(2)): A provision that obliges encrypted messaging platforms to trace a message back to its originator, if the intermediary receives a court order asking them to do so. This has been a much debated provision in the context of encryption and privacy.

NOTE: THE BACKGROUND GUIDE MUST NOT BE DIRECTLY QUOTED DURING SPEECHES. HOWEVER, PARTICIPANTS MAY USE IT FOR RESEARCH AND STUDY, THOUGH THE PROVIDED DATA SHOULD NOT BE SOLELY RELIED UPON FOR ABSOLUTE ACCURACY.

THANK YOU.



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